

JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.727 of 2014
(Sawan Masih alias Bodi versus The State etc.)

and

Capital Sentence Reference No.7-T of 2017
(The State versus Sawan Masih alias Bodi)

JUDGMENT

Date of Hearing	05.10.2020
Appellant by	Mr. Tahir Bashir, Advocate
State by	Rana Muhammad Arif Kamal Noon, Prosecutor General Punjab along with M/s Saeed Ahmad Sheikh, Addl. Prosecutor General, Usman Iqbal, Deputy Prosecutor General and Muhammad Moeen Ali, Deputy Prosecutor General
Complainant by	Ch. Liaqat Ali Anjum and Ch. Moazzam Tuffail Gujjar, Advocates

Syed Shahbaz Ali Rizvi, J: - This judgment shall dispose of Crl. Appeal No.727 of 2014 filed by Sawan Masih alias Bodi, appellant against his conviction and sentence and Capital Sentence Reference No.7-T of 2017 sent by the learned trial court for confirmation or otherwise of the sentence of death awarded to the appellant as same have arisen out of same judgment dated 27.03.2014 passed by the learned Addl. Sessions Judge, Lahore in case FIR No.112 dated 08.03.2013, offence under Section 295-C, PPC registered at Police Station Badami Bagh District Lahore whereby, the appellant was convicted under Section 295-C, PPC and sentenced to death with the direction to pay fine of Rs.2,00,000/- and in default thereof, to undergo simple imprisonment for six months.

2. Per prosecution, the facts of the case, as disclosed by Shahid Imran, complainant (PW-2) in his complaint (Exh-PA) on the basis

of which formal crime report (Exh-PA/2) was registered, are that on 07.03.2013 after '*Fajar*' prayer, the complainant came out of his house for a walk. When he reached near the godown of Bao Saeed, his neighbours Muhammad Shafique (given up PW) and Iftikhar Khan (PW-3) also came there. Muhammad Shafique (given up PW) was having a word with him when the appellant in rickshaw suddenly started using derogatory remarks about the Holy prophet Hazrat Muhammad ﷺ to whom they tried to apprehend but he fled away from the spot.

3. Sawan Masih alias Bodi, appellant was arrested in this case by Multan Khan, S.P. (PW-7), the investigation officer on 09.03.2013. After completion of investigation, report under Section 173 of the Code of Criminal Procedure, 1898 was submitted against the appellant. The learned trial court, after observing pre-trial codal formalities, framed the charge against him on 29.05.2013 to which he pleaded not guilty and claimed trial.

4. The prosecution, in order to prove its case, produced as many as eight witnesses during the trial. Shahid Imran, complainant (PW-2), Iftikhar Khan (PW-3) and Shabbir Hussain (PW-4) furnished the ocular account. Multan Khan, S.P. (PW-7) and Syed Muhammad Amin Bukhari, S.P. (PW-8) are the investigation officers of this case whereas, rest of the witnesses are formal in nature. The learned Assistant District Public Prosecutor gave up Muhammad Shafique and Qasim Ali PWs being unnecessary and closed the prosecution evidence.

5. The statement of the appellant under Section 342 of the Code of Criminal Procedure, 1898, was recorded wherein, he refuted the allegations levelled against him and professed his innocence. He further maintained that he had been involved in this case on the asking of godown owners who wanted to purchase Joseph colony but the residents of the colony refused to sell their houses. He further states that Joseph colony was set on fire as a result whereof, about

200 houses were burnt. He did not opt to appear as his own witness on oath as provided under Section 340(2) of the Code of Criminal Procedure, 1898 in disproof of the allegations levelled against him however, he produced Khadim Masih (DW-1) and Altaf Masih (DW-2) in his defence.

6. The learned trial Court vide its judgment dated 27.03.2014, found the appellant guilty, convicted and sentenced him as mentioned above.

7. We have heard the arguments of learned counsel for the appellant, learned Prosecutor General, learned counsel for the complainant and also scanned the record with their assistance.

8. Before advertng to the appraisal of evidence available on file and giving our observations regarding the same, we find it advantageous to borrow and reproduce an excerpt from the judgment recently passed by the Hon'ble Supreme Court of Pakistan in the case of Mst. Asia Bibi v. The State and others (PLD 2019 Supreme Court 64) that reads as under: -

“10. After the independence, to ensure that no attempt could be made to defy the Prophet Muhammad, a new provision was introduced in Pakistan Penal Code, 1860 (P.P.C.), which reads as under: -

“295-C. Use of derogatory remarks, etc., in respect of the Holy Prophet: Whoever by words, either spoken or written, or by visible representation or by any imputation, innuendo, or insinuation, directly or indirectly, defiles the sacred name of the Holy Prophet Muhammad (peace be upon him) shall be punished with death, or imprisonment for life, and shall also be liable to fine.”

As per this provision, the act of blasphemy was made culpable and sentence provided was either death or imprisonment for life along with a fine. The validity of this provision was considered by the Federal Shariat Court in the case titled as Muhammad Ismail Qureshi v. Pakistan through Secretary, Law and Parliamentary Affairs (PLD 1991 FSC 10) wherein the Court ruled that Section 295-C of PPC was repugnant to the fundamental principles of Islam to the extent that it

provided for the punishment of life imprisonment which acted as an alternative to a death sentence. It was held that the penalty for contempt of the Holy Prophet is death. It was further held that if the President of the Islamic Republic of Pakistan did not take any action to amend the law before 30th April, 1991, then Section 295-C would stand amended by the said ruling. An appeal was filed before the Shariat Appellate Bench of this Court, which was dismissed for want of prosecution.

11. As mentioned above, Muslims all over the world have immense love, admiration and affection for Prophet Muhammad more than their own lives or the lives of their parents and children. No one could be allowed to defy the name of the Holy Prophet Muhammad nor could a person guilty of disrespecting the Holy Prophet be let off scot-free. Even the Government has always made efforts at the national and international level to eliminate instances of blasphemy of the Holy Prophet. For instance, in March 2009, our government presented a resolution to the United Nations Human Rights Council in Geneva condemning “defamation of religion” as a human rights violation, which called upon the world to formulate laws against the defamation of religion. The resolution was adopted on 26.3.2009 despite wide concerns that it could be used to justify restrictions on free speech in Muslim countries. The efforts of our government succeeded in imposing global limitations against any attempt to defy a religion or belief, on the basis of freedom of expression. The social media website “Facebook” was blocked as it promoted and hosted a page called as “Everybody draw Muhammad Day”. This was another attempt made by the authorities to stop these malicious and vexatious attempts to sabotage the Holy name. The ban was lifted when Facebook prevented access to the said page. In June 2010, seventeen websites were banned for hosting content which were offensive and demeaning to Muslims. Since then the authorities have been monitoring the content of various websites including Google, Yahoo, YouTube, Amazon, MSN, Hotmail and Bing and all social media websites which are used globally and have a direct impact on people.

12. As noted above, no one could be allowed to defy the name of the Holy Prophet Muhammad and be left unpunished, but there is another aspect of the matter; sometimes, to fulfill nefarious designs the law is misused by individuals levelling false allegations of blasphemy. Stately, since 1990, 62 people have been murdered as a result of blasphemy allegations, even before their trial could be conducted in accordance with law. Even prominent figures, who stressed the fact that the blasphemy laws have been misused by some individuals, met

with serious repercussions. A latest example of misuse of this law was the murder of Mashal Khan, a student of Abdul Wali Khan University, Mardan, who in April 2017 was killed by a mob in the premises of the university merely due to an allegation that he posted blasphemy content online.

13. Reference may also be made to the case of one Ayub Masih, who was accused of blasphemy by his neighbour Muhammad Akram. The alleged occurrence took place on 14th October 1996, the accused was arrested, but despite the arrest, houses of Christians were set ablaze and the entire Christian population of the village (fourteen families) were forced to leave the village. Ayub was shot and injured in the Sessions Court and was also further attacked in jail. After the trial was concluded, Ayub was convicted and sentenced to death, which was upheld by the High Court. However, in an appeal before this Court, it was observed that the complainant wanted to grab the plot on which Ayub Masih and his father were residing and after implicating him in the said case, he managed to grab the seven-marla plot...”

9. Now coming to the case in hand, we have observed that the appellant stands convicted under the charge of an offence that carries capital sentence only. Being so, it requires higher standards of appreciation of evidence and strict scrutiny of the same. For that purpose in the peculiar circumstances of this case we need to bear in mind commandment of Allah Almighty ordained in Surah Al-Nisa Verse No.135 reads as under: -

“So follow not [personal] inclination, lest you not be just. And if you distort [your testimony] or refuse [to give it], then indeed Allah is ever, with what you do, acquainted.”

10. Admittedly, the appellant is a Christian by faith. The occurrence of this case, as per prosecution’s story, took place on 07.03.2013 after ‘*Fajar*’ prayer. The allegation against the appellant is that he perpetrated the offence of blasphemy in presence of five Muslim witnesses when he was not armed. The complainant (PW-2) also claims in his examination in chief at page 22 of the paper-book that many other people from the locality also gathered there and they informed them about the words used by Sawan Masih, appellant but surprisingly the matter was not reported by the complainant or the other witnesses till 02.50 p.m. on 08.03.2013 i.e. after ‘*Jummah*’

prayer when according to Shahid Imran, complainant (PW-2) himself, Joseph Colony (Christian Colony) had already been set on fire and an altercation had taken place inside that colony as is reflected from his statement that reads as under: -

“...On 8.3.13 when Jozif colony was set on fire I was not present there. Again said that I was present there but specifically at the time of setting Jozif colony on fire I was not present. I had gone to mosque for Jumma prayer and when I came back the people had set on fire the Billiard game of the accused, and so many people were present there. Mohammad Shafique/PW was also present there and he was having chhuri in his hand. Some one had informed the police at that time I, Iftikhar and Shafique were present and police also reached there. It is correct that regarding the setting on fire Jozif colony the criminal case was registered but I cannot remember the case FIR No. I am also accused nominated in the said FIR. Shafique PW is also accused in that case...”

Besides the complainant (PW-2), Iftikhar Khan (PW-3) in his examination in chief admits as under: -

“...On next day I was telephonically informed that fight had taken place in the christian colony. I also reached there. Then application was submitted to the police already present there...”

The investigation officer (PW-8) at the beginning of his cross examination also states as under: -

“I recorded in my case diary dated 12.3.13 that PWs Mohammad Shafique and Iftikhar Ahmad Khan had fled away due to that reason I have not interrogated them on the same day. The said PWs were the accused regarding the burning of houses and a case was registered against them under 7ATA. I interrogated them in custody as they were arrested in case FIR No.114/13 P.S. Badami Bagh...”

These reproduced excerpts from the statements of the prosecution witnesses reveal (i) that Joseph Colony was attacked and set on fire even on 08.03.2013; (ii) the complainant as well as Muhammad Shafique (given up PW) and Iftikhar Khan (PW-3) were the nominated accused of the FIR subsequently registered; (iii) it is thereafter, the complainant and others found it required to get a criminal case registered against the appellant and that after ‘Jummah’ prayer on 08.03.2013, they reported the matter at 02.50

p.m. to the concerned SHO who attracted to the spot having information about the occurrence in Joseph Colony. This aspect of the prosecution case, at the very inception, makes the credibility of the FIR that has been got registered by the complainant and others after they purportedly had burnt the properties of the Christians in their colony including the Billiard game of the appellant, doubtful. It cannot be ruled out that the accusation levelled in the crime report (Exh-PA/2) might have been concocted to create a defence with regard to the assault made.

11. It is also very much relevant in this case that written application (Exh-PA) admittedly drafted on 08.03.2013 bearing thumb impression of the complainant and read over to him does not carry the derogatory remarks allegedly uttered by the appellant in presence of the witnesses even though from the details given by the prosecution witnesses, the application (Exh-PA) was drafted in presence of other persons of Muslim community gathered for 'Jummah' prayer in the mosque situated near Joseph Colony. PW-2 is self discrepant with regard to his explanation in this regard as during his cross examination, he maintains that he had mentioned the derogatory remarks in the FIR but not written by the scribe while in contravention of the same in his examination in chief, he maintains that application (Exh-PA) was duly thumb marked by him and same was read over to him. It is also to be kept in mind that Multan Khan, S.P. (PW-7) in his statement claims that complainant Shahid Imran, in his statement before him, had endorsed contents of his complaint (Exh-PA). Similarly, being inconsistent with his earlier explanation, in his written application (Exh-PB), he (PW-2) gives the reason that reads as under:-

"...جو الفاظ ملزم ساون مسیح نے ہمارے نبی پاک ﷺ کی شان میں گستاخانہ کہے اپنی درخواست میں تحریر نہ کر سکا چونکہ بوقت اندراج مقدمہ کافی رش اور شور شرابہ تھا۔۔۔"

If the complainant got recorded the blasphemous words in his first application (Exh-PA) but were not incorporated by the recorder, he should have given the same reason for that omission in his second application (Exh-PB). Moreover, before moving application (Exh-PB), he had the opportunity to rectify the lacuna when (i) the application (Exh-PA) was read over to him; (ii) when he during investigation of S.P. Multan Khan (PW-7) endorsed contents of FIR on 08.03.2013. It is of much importance to note that the second investigation officer (PW-8) admits that on 13.03.2013, derogatory remarks were not recorded in the file.

Upon the incident of Joseph Colony, a suo moto notice was taken by the Hon'ble Supreme Court of Pakistan and the investigation officers of this case attended the proceedings on 13.03.2013 while application (Exh-PB) carrying derogatory remarks was moved by the complainant on 15.03.2013 i.e. two days after the appearance of higher police authorities and the investigation officer before the Hon'ble Supreme Court of Pakistan regarding which Syed Muhammad Ameen Bukhari, Superintendent of Police (PW-8), during his cross examination, concedes as under: -

“...Till 13.3.13 derogatory remarks were not recorded, and as per information received by me the observation was made by the August Supreme Court regarding derogatory remarks in the FIR...”

So, it cannot be denied that the contemptuous words were added by the complainant through a written application (Exh-PB) after the observation made by the Hon'ble Apex Court on 13.03.2013 and also after the registration of case FIR No.114/2013 under Sections 148, 149, 186, 427, 337-F(i), 337-L(2), 295-A, 353, 377 and 324 PPC on 09.03.2013 against him, Iftikhar Khan (PW-3) and given up witness Muhammad Shafique. It is also an established fact that complaint (Exh-PA) was drafted by someone whose name, throughout the investigation and trial, remained shrouded in mystery however, consultation of the complainant in this regard is admitted which is also evident from the crime report itself. The supra noted

inconsistent explanations of PW-2 qua the non-mentioning of derogatory remarks in the FIR, their belated insertion after the above referred proceedings of the Hon'ble Supreme Court and after the registration of FIR against the PWs, credibility of the contents of Exh-PB including the blasphemous words and the introduction of two new eyewitnesses becomes seriously dubious. These facts lead us to infer that the circumstances in which the FIR without the derogatory remarks was lodged and subsequent application (Exh-PB) carrying words blasphemous in nature was moved, were not free from doubts.

12. As per Exh-PA, the written application moved by the complainant (PW-2), the occurrence took place when he, after 'Fajar' prayer went out for a walk 'سیر' and when he (means he was not accompanied by his guests (PW-4) and Qasim (given up PW) subsequently introduced through Exh-PB) reached near the godown of Bao Saeed, his neighbouring shop owner Muhammad Shafique (given up PW) and Iftikhar Khan (PW-3) arrived there. Muhammad Shafique was talking to him when the appellant in a rickshaw (means Sawan Masih, appellant was inside the rickshaw) started uttering derogatory remarks, we find it advantageous to reproduce the original text of Exh-PA that reads as under: -

”۔۔۔ کل مورخہ 7-3-2013 کو اپنے گھر میں فجر کی نماز پڑھنے کے بعد سیر کے لیے گھر سے نکلا جب میں باؤ سعید کے گودام کے قریب پہنچا تو اسی اثناء میں میرا ہمسایہ دوکان دار محمد شفیق ولد محمد رفیق سکنہ شیخ آباد اور افتخار خاں ولد عبدالغفار خان سکنہ عبدالقیوم روڈ گلی نمبر 6 مکان نمبر 5 آگئے محمد شفیق مجھ سے باتیں کر رہا تھا اس اثناء میں ہمارے قریب ہی ایک رکشہ کھڑا تھا جس میں ہمارا ہمسایہ ساون مسیح عرف بودی ولد چمن مسیح سکنہ جوزف کالونی جس کو میں پہلے سے جانتا ہوں یک دم ساون مسیح نے ہمارے آخرے نبی ﷺ کی شان میں گستاخانہ الفاظ استعمال کرنا شروع کر دیے۔۔۔“ (for emphasis underlining is ours)

It evinces that neither the complainant went for taking the car of his guest from the godown of Bao Saeed nor he was accompanied by his guest subsequently introduced by him in his supplementary statement/application (Exh-PB) after the delay of seven days hence, he is inconsistent about the reason given for his being at the place of occurrence and also to the effect that he went out alone or with guests. It is also noticed that FIR (Exh-PA/2) is even silent about the presence of Tola Masih, Tagga Masih, Shabbir Hussain (PW-4) and Qasim Ali (given up PW). Moreover, from the FIR, it reveals that the complainant (PW-2) left his house after '*Fajar*' prayer not at 06.45 p.m. as stated by PW-3. The time of '*Fajar*' explained by him (PW-2), during his cross examination, then was 04.00 a.m, inadvertently written as 04.00 p.m. at page No.24 of the paper-book that can be gathered from the next sentence stated by him that reads as under: -

“...and I said my prayer at about 5.30 a.m...”

He (PW-2) further deviated from Exh-PA, during his cross examination, saying that after '*Fajar*' prayer, he remained in his quarter as according to FIR, he went out after '*Fajar*' prayer.

13. Giving the manner of uttering blasphemous words, in his examination in chief, the complainant (PW-2) says as under: -

“...In the meanwhile I alongwith Mohammad Shabbir and Qasim Ali was present at the gate of godown. The watchman reached at the gate of godown in the meanwhile Sawan Masih/accused present in the court started talking. Iftikhar Hussain and Shafique PWs also reached there. The accused has used the words that...”

Both, application (Exh-PA) as well as the statement of the complainant reproduced supra are silent about the fact that at the time of utterance of derogatory remarks by the appellant who was being addressed. Even it is not given therein that why did he start uttering the said remarks. The witnesses in their statements have not stated that on 07.03.2013, at the given time, the appellant while giving remarks, derogatory in nature, addressed the complainant

(PW-2) or the other PWs and similarly, it is not the case that he addressed Tola Masih or Tagga Masih. The prosecution evidence even does not disclose the occasion, context or the discussion during which, the appellant spoke the words. Whole prosecution case canvassed by the prosecution witnesses is completely quiet in this regard. It is not appealing to a prudent mind that without any reason, the appellant, to whom insanity is not even alleged, started talking such words at a public place that too in presence of Muslim witnesses in a Muslim country.

14. Per Iftikhar Khan (PW-3) when he reached at the place of occurrence at 06.45 a.m, the conversation was going on. The accused was talking and using the words derogatory in nature. The accused allegedly spoke same words in his presence for four times. This part of his statement is inconsistent with the statement of Shabbir Hussain (PW-4) who in his examination in chief maintains as under:-

“...We have to take the car from the garage where the accused present in the court he was present alongwith rickshaw and he had gripped the side pipe of the rickshaw. He said that...Then hot words were exchanged between Shahid Imran/complainant and accused...”

This statement of PW-4 does not support the statement of PW-3 regarding the continuity of conversation of the appellant. Similarly, PW-3 and PW-4 are not consistent with regard to what exactly happened and what remained their reaction immediately after the utterance of blasphemous words by the appellant. According to Shabbir Hussain (PW-4), then hot words were exchanged between the complainant and the appellant. For better understanding, the same excerpt from his statement is reproduced hereunder: -

“...Then hot words were exchanged between Shahid Imran/complainant and accused I asked Shahid Imran that who was this person and he said to me that I shall take my car and went to my work. During this period two persons namely Shafique and Iftikhar also reached there. Then I went to High Court for my Paishi.” (underlining is ours)

Being discrepant, PW-3, in his examination in chief, maintains as under: -

“On this Mohammad Shafique/PW attacked on Sawan Masih and Tola Masih as well as Tagga Masih present there also restrained the accused not to use such words. We attempted to control Mohammad Shafique who was abusing the accused...”

Likewise, in the same context, the statement of PW-2 reads as under:-

“At that time two persons namely Tola Masih and Tagga Masih(Amjad Masih) were also present there and they had restrained the accused not to use these words and in reply accused Sawan Masih abused them...” (underlining is ours)

The complainant (PW-2) has not stated that the hot words were exchanged between him and the appellant. Similarly, Shabbir Hussain (PW-4) said nothing about the intervention of Togga Masih and Tola Masih at the relevant time.

15. We have also noticed that regarding the exact presence of Sawan Masih, appellant, the prosecution evidence is not consistent with each other. The complainant (PW-2), in his examination in chief, has not explained as to whether the appellant was sitting inside the Rickshaw or standing outside when he uttered blasphemous words but during his cross examination, he states that when Sawan Masih, appellant used derogatory words, he was out of the Rickshaw. He, however admits that on 15.03.2013, he got recorded his supplementary statement and in that statement, he mentioned that Sawan Masih was standing near rickshaw. PW-3 while improving his earlier statement, inconsistent with PW-2, in his examination in chief, stated that Sawan Masih, appellant along with Tola Masih and Tagga Masih was present nearby the Rickshaw but when cross examined by learned defence counsel, available at page 31 & 32 of the paper-book, he states as under: -

“...The statement was recorded by Multan Khan/SP. He read over the same to me. Sawan Masih was present outside the rickshaw. It is incorrect to suggest that in my statement before SP/Multan Khan I recorded that Sawan Masih was present

inside the rickshaw. Confronted with Ex.DA where it is so recorded...” (underlining is ours)

Similarly, the marginal note given under the site plan prepared by the investigation officer Multan Khan S.P. (PW-7) also shows that the accused uttered derogatory remarks while sitting in the Rickshaw.

16. Further perusal of the prosecution evidence also reveals that the place of occurrence is the gate of godown of Bao Saeed which is situated right across the road where the house of the appellant is situated in Joseph Colony inhabited by the Christian community. According to the stance of the complainant (PW-2), in response of his telephone call, the watchman of godown of Bao Saeed, having good relations with the complainant, also reached at the gate when the occurrence took place. Meaning thereby, the watchman was the most material and natural witness of the occurrence but neither he was produced before the learned trial court nor the prosecution evidence says anything about his joining the proceedings of investigation. Moreover, Muhammad Shafique, according to PW-2 & PW-3 reacted the most during the alleged occurrence and even on 08.03.2013 being armed with a '*Chhuri*' intended to kill the appellant but surprisingly, prosecution avoided to produce him in the witness box instead Shabbir Hussain (PW-4) was produced whose name is not mentioned in the crime report and for the first time, he was introduced on seventh day of occurrence through Exh-PB. He besides being brother-in-law of complainant is a chance witness being resident of District Hafizabad.

As regards the alleged admission of the appellant before the complainant and the investigation officer (PW-8) while in custody regarding utterance of blasphemous words, it has been noticed that the same piece of evidence has not been put to him during his statement recorded under Section 342 of the Code of Criminal Procedure, 1898. By now, it is an established proposition of law that if a piece of evidence is not put to an accused while recording his

statement under the supra mentioned provision of law that cannot be read in evidence.

Taking stock of the whole discussion, we have come to an irresistible conclusion that the prosecution evidence lacking judicial certainty and credibility does not inspire confidence sufficient to rely upon in such a case of capital sentence.

17. While denying the occurrence during the cross examination upon the prosecution witnesses especially the complainant PW-2, the appellant consistently took a defence that reflects from the suggestions given to PW-2 during the cross examination excerpt from which reads as under: -

“...It is incorrect to suggest that I have levelled a false allegation against the accused Sawan Masih on the asking of Mohammad Shafique/PW...It is incorrect to suggest that Sawan Masih accused has not used the derogatory remarks and words. It is also incorrect to suggest that as Shafique/PW was having relations with the owners of godowns and I in connivance with Mohammad Shafique PW wrongly lodged this FIR against Sawan Masih accused...”

Likewise, while replying to question No.2 & 3 during his statement recorded under Section 342 of the Code of Criminal Procedure, 1898, he maintained as under: -

“The allegation is absolutely incorrect and vehemently denied. I have deep respect for Prophet Muhammad (Peace Be upon Him). My own belief does not allow to commit blasphemy of any prophet. No such incident took place. I have been involved in this totally false case due to conspiracy and complainant has been used a tool. I just cannot think of uttering any word that may cause disrespect of the Prophet.

Q.3 Why this case against you and why the PWs have deposed against you”

Ans. I live in Joseph colony which is surrounded by steel market. The steel market godown owners have been persuading and forcing the residents who are all Christians to give this property to them for which they would be substantially paid but they did not agree and have been avoiding this demand for years. Finally they hatched a conspiracy to push out the residents of the colony. They contrived a case under blasphemy law through the present

complainant with whom I had close relations. In those days godown owners were having market committee elections in which two groups of steel market (Aman Group and Ittehad Group) were contesting. They put up banners against me alleging blasphemy against the Prophet. They demanded that accused be punished with death and be handed over to them. The collected people of nearby colonies and claries were involved who announced in mosques that a Christian had committed blasphemy against the Prophet. They played with the religious sentiments of the people. On the same after noon they lodged FIR against me. Same day they planned to put Joseph colony on fire. They involved local police to create fear and alarm amongst Christian residents who were threatened to leave the colony to save their lives. The Christian in order to save life kept moving out of colony till late night and early morning on 9th March. They burnt the colony putting about 200 houses on fire. The police arrested me at night of 8th March. This was conspiracy to grab the colony. The complainant, PWs and about 83 persons were later charged in FIR No.114/13 under sections 148, 149, 436, 427, ATA 337/F1, L2, 295/A, 353, 377, 324/186 PPC and they are facing trial before Anti Terrorism court Lahore. I have been made scapegoat and a victim of this malicious conspiracy.”

18. Their remains no doubt about the fact admitted by the prosecution witnesses that the place of occurrence is situated near Joseph Colony inhabited by Christians which is admittedly surrounded by the godowns of scrap owned by Muslims and even the complainant is residing in a godown of Abid as is evident from the temporary address given by him in his application (Exh-PA). Thus defence taken by the appellant is not to be brushed aside when it is read with the facts (i) that the FIR (Exh-PA/1) was got recorded, by the complainant and others including ‘پیش امام’ of a mosque situated in front of Joseph Colony and others including the godown workers, after the incident of mischief committed by mob in Joseph Colony on 08.03.2013 prior to ‘Jummah, prayer and even the properties of Christians including the appellant were damaged and set on fire; (ii) that the blasphemous remarks were for the first time disclosed by the complainant and witnesses with the delay of eight days and that too after six days of the registration of criminal case under the provisions of Anti-Terrorism Act, 1997 and Pakistan Penal

Code, 1860 against the main characters of the prosecution case i.e. complainant (PW-2), Iftikhar Khan (PW-3) and the given up PW Muhammad Shafique, running a business of scrap in the vicinity; and (iii) that the complainant party filled in the lacunas of its case after the suo moto notice of the serious damage caused to the Christians of Joseph Colony on 08.03.2013 and 09.03.2013 by setting their properties on fire, was taken by the Hon'ble Apex Court of the country.

19. At this stage, we would like to reproduce the observations given by the Hon'ble Supreme Court of Pakistan in the case of Malik Muhammad Mumtaz QAdri v. The State reported as (PLD 2016 SC 17) that reads as under: -

15. "...Commission of blasphemy is abhorrent and immoral besides being a manifestation of intolerance but at the same time a false allegation regarding commission of such an offence is equally detestable besides being culpable. If our religion of Islam comes down heavily upon commission of blasphemy then Islam is also very tough against those who level false allegations of a crime. It is, therefore, for the State of the Islamic Republic of Pakistan to ensure that no innocent person is compelled or constrained to face an investigation or a trial on the basis of false or trumped up allegations regarding commission of such an offence."

20. From the whole supra discussion with regard to almost every factual aspect of the case in hand lead us to an irresistible conclusion that the prosecution remained fail to prove its case against the appellant beyond the shadow of a reasonable doubt. There remains no cavil about the proposition that if there is a single circumstance which creates reasonable doubt regarding the prosecution case, the same is sufficient to give benefit of the same to the accused, whereas, in the instant case we have observed many, discussed supra. The Hon'ble Supreme Court of Pakistan in the case of Ayub Masih v. The State (PLD 2002 SC 1048) was pleased to observe as under: -

"...The rule of benefit of doubt, which is described as the golden rule, is essentially a rule of prudence which cannot be ignored while dispensing justice in accordance with law. It is

based on the maxim, “it is better that ten guilty persons be acquitted rather than one innocent person be convicted”...”

21. In the light of above discussion, we accept **Criminal Appeal No.727 of 2014** filed by Sawan Masih alias Bodi (appellant), set aside his conviction and sentence recorded by the learned trial court and acquit him of the charge levelled against him by extending him the benefit of doubt. He is in custody, be released forthwith if not required to be detained in any other case.

22. **Capital Sentence Reference No.7-T of 2017** is answered in the **NEGATIVE** and sentence of death of Sawan Masih alias Bodi (convict) is **NOT CONFIRMED**.

(Asjad Javaid Ghural)
Judge

(Syed Shahbaz Ali Rizvi)
Judge

APPROVED FOR REPORTING

Judge

Judge